

26STCV21124 26STCV21124

County: los-angeles

Division: Civil Law and Motion

Department: 14

Hearing date: 2026-08-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C14%2C08%2F27%2F2026

Source SHA-256: 499d083faa01811f85c5670f57338f9f1f185d20cc0a26bc6eb9a0da25fbd0b8

Case Number: 26STCV21124 Hearing Date: August 27, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

NORA SHINE and MICHAEL SHINE,

Plaintiffs,

v.

JAFRA COSMETICS, et al.

Defendants.

Case No. 26STCV21124

Hearing Date: August 27, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

DEFENDANT PORT JERVIS LABORATORIES, INC.'S
MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT

I.

Background

On July 2, 2026, Plaintiffs Nora and Michael Shine filed their complaint for personal injury alleging Ms. Shine developed mesothelioma from her exposure to asbestos-containing talcum powder products and cosmetics. As against Defendant Port Jervis Laboratories, Inc. ("Port Jervis"), formerly Kolmar Laboratories, Inc., Plaintiffs allege Ms. Shine was exposed to asbestos-containing products Port Jervis manufactured for Yves Saint Laurent, Jafra, Max Factor, Maybelline, L'Oreal, Elizabeth Arden, and Coty between 1958 and 2020.

On July 27, 2026, Port Jervis moved to quash the summons and complaint on the grounds that the court lacks personal jurisdiction over it.

On August 14, 2026, Plaintiffs opposed, arguing Port Jervis had extensive contacts with California which show that Port Jervis purposefully availed itself of the California market.

On August 20, 2026, Port Jervis replied, arguing Plaintiffs failed to meet their burden to provide admissible evidence that Port Jervis is subject to specific jurisdiction in California.

Port Jervis admits that it operated manufacturing facilities in California during the time Ms. Shine alleges she was exposed to products it manufactured for Jafra. Port Jervis therefore purposefully availed itself of the California market. Plaintiffs' claims are related to Port Jervis's California contacts because Ms. Shine alleges she was exposed to asbestos at the time Port Jervis manufactured products in California. The motion to quash is denied.

II.

Evidentiary Objections

Port

Jervis's Objections

Sustained:

1.

Exhibit 1 to the Declaration of Erica L. Falkner: "a true and correct copy of Plaintiffs' Response to General Order Standard Interrogatories Propounded by Defendants, filed on August 13, 2026, in this case." Port Jervis objects to this exhibit on the grounds that Plaintiffs cannot use their own discovery responses to support their case. Port Jervis cites Code Civil Procedure section 2030.410, which provides that "at the trial or any other hearing in the action, so far as admissible under the rules of evidence, the propounding party or any party other than the responding party may use any answer or part of an answer to an interrogatory only against the responding party." The objection is sustained.

2.

Exhibit 2 to the Declaration of Erica L. Falkner: "a true and correct copy of select pages from the consecutively-paginated transcript of the deposition of Agnes Denes, Defendant Jafra's designated representative, taken on February 20 and 21, 2024, in Perez v. Jafra Cosmetics International, Inc., et al., LAOSD Asbestos Cases, JCCP No. 4674, Los Angeles Superior Court, Case No. 22STCV20267." This testimony is hearsay. Plaintiffs fail to identify a valid hearsay exception to support the admissibility of this prior testimony. Plaintiffs fail to rebut the general rule against the admissibility of former deposition testimony. (Berroteran v. Superior Court (2022) 12 Cal.5th 867, 895 ["The party urging admission of deposition testimony bears the burden of rebutting the general rule by submitting appropriate information justifying the admission of designated deposition testimony."].) Plaintiffs offer no evidence or argument to support the admissibility of this deposition and do not address whether this deposition was intended to serve as a trial preservation transcript, whether a subsequent agreement was made to use the deposition as trial testimony, or that any of the Berroteran factors bear in favor of the admissibility of the deposition. The objection is sustained.

3: Exhibit 3 to the

Declaration of Erica L. Falkner: Plaintiffs appear to have mislabeled this exhibit. Although the Falkner Declaration represents that Exhibit 3 is a transcript of the deposition of Rob Edmonds taken in an unrelated case, the attached exhibit is actually a transcript from a hearing in an unrelated matter. Port Jervis's objection to this exhibit is sustained.

4: Exhibit 37 to the

Declaration of Erica L. Falkner: The transcript described as Exhibit 3 to the Falkner declaration is attached as Exhibit 37. The testimony is hearsay for the same reasons as objection 2.

5: Exhibit 4 to the

Declaration of Erica L. Falkner: "a true and correct copy of an E.T. Horm Memorandum, from Kolmar Labs, Inc., dated August 11, 1999." This exhibit is hearsay because it is an out of court statement offered to prove the truth of the contents of the memorandum.

III.

Discussion

A.

Legal Standard

A defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over them. (Code Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581, subd. (h).) 22

2

"A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) "The Due Process Clause protects an individual's liberty interest in not being subject to the binding judgments of a forum with which he has established no meaningful 'contacts, ties, or relations.'" (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 471 – 472.) A state court may not exercise personal jurisdiction over a party under circumstances that would

offend "traditional notions of fair play and substantial justice." (Asahi Metal Industry Co., Ltd., v. Superior Court of California, Solano County (1987) 480 U.S. 102, 113.)

When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. (Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd. (2019) 31 Cal.App.5th 543, 553.) Once facts showing minimum contacts with the forum state are established, the defendant has the burden to demonstrate the exercise of jurisdiction would be unreasonable. (Ibid.) "The plaintiff must provide specific evidentiary facts, through affidavits and other authenticated documents, sufficient to allow the court to independently conclude whether jurisdiction is appropriate. [Citation.] The plaintiff cannot rely on allegations in an unverified complaint or vague and conclusory assertions of ultimate facts. [Citation.]" (Strasner, supra, 5 Cal.App.5th at p. 222.)

A defendant is subject to a state's general jurisdiction if its contacts "are so continuous and systematic as to render [it] essentially at home in the forum State." (Daimler AG v. Bauman (2014) 571 U.S. 117, 127.) A nonresident defendant may be subject to the specific jurisdiction of the forum "if the defendant has purposefully availed himself or herself of forum benefits [citation], and the 'controversy is related to or 'arises out of' a defendant's contacts with the forum.' [Citations.]" (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 446.) This test does not require a "causal relationship between the defendant's in-state activity and the litigation." (Ford Motor Co. v. Montana Eighth Judicial District Court (2021) 592 U.S. 351, 362) The "arise out" of standard "asks about causation," but "relate to" does not. (Ibid.) "[W]hen a corporation has 'continuously and deliberately exploited [a State's] market, it must reasonably anticipate being haled into [that State's] court[s]' to defend actions 'based on' products causing injury

there." (Id. at p. 364.)

B.

General Jurisdiction

General jurisdiction over

a corporate defendant exists when the corporation's "affiliations with the State are so 'continuous and systematic' as to render it essentially at home in the forum State." (Daimler, supra, 571 U.S. at p. 139.) The paradigmatic examples of these affiliations are the locations where the defendant is incorporated and of the defendant's principal place of business. (Daimler, supra, 571 U.S. 117, at p. 137.) Here, there is no dispute over general jurisdiction. The parties agree that general jurisdiction is not at issue here.

C.

Specific Jurisdiction

A court may exercise specific

jurisdiction over a plaintiff when three elements are satisfied: "(1) 'the defendant has purposefully availed himself or herself of forum benefits' [citation]; (2) 'the controversy is related to or 'arises out of' [the] defendant's contacts with the forum' [citation]; and (3) 'the assertion of personal jurisdiction would comport with 'fair play and substantial justice' " [citation.]" (Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 269.)

Where specific jurisdiction is

based on a "stream of commerce" theory the "purposeful availment" requirement is not satisfied by the mere fact that the defendant placed the product into the stream of commerce. In J.

McIntyre Machinery, Ltd. v. Nicastro (2011) 564 U.S. 873, 882-883, the U.S. Supreme Court addressed the question of whether in "stream of commerce" cases, the "purposeful availment" requirement for specific jurisdiction could be satisfied by a showing that a foreign manufacturer placed the goods into commerce "with the expectation that they will be purchased by consumers in the forum State," ("injection into the stream of commerce" or "foreseeability" that the product would be sold in the forum state) or if "purposeful availment" required such "stream of commerce plus" other activities by a foreign defendant directed

at the forum State. (See *J. McIntyre Machinery, Ltd. v. Nicaastro* (2011) 564 U.S. 873, 882-883.)

The plurality of the J. McIntyre Court resolved the conflict in favor of the “stream of commerce plus” position articulated in *Asahi Metal Industry Co. v. Superior Court* (1987) 480 U.S. 102: “This Court’s precedents make clear that it is the defendant’s actions, not his expectations, that empower a State’s courts to subject him to judgment.” (*J. McIntyre*, *supra*, 564 U.S. at pg. 883.)

1.

Purposeful
Availment

Purposeful
availment “focuses on the defendant’s intentionality. This prong is satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on his contacts with the forum.” (*Pavlovich*, *supra*, 29 Cal.4th at p. 269.) “California courts have consistently concluded that a foreign corporation purposefully avails itself of the benefits of the California forum when it knowingly sells and ships its products to California businesses for use in California.” (*LG Chem, Ltd. v. Superior Court of San Diego County* (2022) 80 Cal.App.5th 348, 363.)

Here, Plaintiffs argue that Port Jervis purposefully availed itself of the California because it manufactured cosmetics in California from 1945 to 2003 at manufacturing facilities in Burbank, Riverside, and Corona. (Opp. at p.2.) Plaintiffs argue that Port Jervis’s biggest customer was Jafra and that it was Jafra’s exclusive manufacturer of pressed and loose powder products between 1970 and the 2000s. (*Id.*) In reply, Port Jervis argues that Plaintiffs failed to produce admissible evidence establishing that it purposefully availed itself of the California market. (Reply at pp.4-5.)

Port Jervis submitted a declaration from Rob Edmonds admitting that Port Jervis is a custom manufacturer of color cosmetics, personal care, and skincare products. (Edmonds Decl. at ¶4.) Mr. Edmonds

further declares that Port Jervis operated manufacturing plants in Southern California under its former name, Kolmar Laboratories, Inc. (Id. at ¶.7.) The last of these facilities closed in 2002 or 2003. (Id.) Mr. Edmonds also admits that Port Jervis made some products for Jafra for a limited amount of time in California. (Id. at ¶15.) Although Mr. Edmonds declares that Port Jervis no longer has any business, employees, or offices in California, Mr. Edmonds admits that Port Jervis had manufacturing plants in California before 2002 or 2003. (Id. at ¶¶8-12.) Regardless of whether Port Jervis has employees or business in California now, Port Jervis admits in its moving papers that it manufactured cosmetic products in California up until 2002 or 2003. It is reasonable to infer from this admission that Port Jervis directed its activities toward California because it manufactured products for Jafra in California.

2.

Relatedness

The

relatedness inquiry is not strictly causal and instead focuses on whether the causes of action “arises out of or has a substantial connection with a business relationship defendant has purposefully established with California.” (Vons, *supra*, 14 Cal.4th 434, at p. 448.) “Only when the operative facts of the controversy are not related to the defendant’s contact with the state can it be said that the cause of action does not arise from that [contact].” (Id. at p.455, quoting *Third Nat. Bank in Nashville v. WEDGE Group Inc.* (6th Cir.1989) 882 F.2d 1087, 1091.)

Here, Port Jervis argues that Plaintiffs’ complaint fails to allege that their claims arise from Port Jervis’s activities in California because the complaint “does not state what specific Jafra Cosmetics products Plaintiffs claim Mrs. Shine was exposed to or used during which specific timeframe.” (Motion at p.9.) In opposition, Plaintiffs argue that their claims arise from Port Jervis’s California contacts because the complaint alleges Ms. Shine used Jafra blush and eyeshadow products at the time Port Jervis manufactured those products in California. (Opp. at p.7.)

The complaint alleges broadly that Ms. Shine was exposed to asbestos-containing cosmetics, including cosmetics Port Jervis manufactured for Jafra, between 1958 and the 2020s. (Compl. at ¶3, p. 34.) At the jurisdictional stage, the merits of the complaint is not at issue. (*Bader v.*

Avon Products, Inc. (2020) 55 Cal.App.5th 186, 198 [Plaintiff in an asbestos products liability case was not required to prove at the jurisdictional stage that asbestos was in the talc powder at issue.].) Although proof of jurisdictional facts may overlap with the merits of a claim, these situations are limited and none apply here. (Id. [“Proof of jurisdictional facts may overlap with the merits, for example, where the plaintiff must make a showing of alter ego or merger in order to establish that a third party's contacts with the forum can be attributed to the defendant [citation] or where there must be some evidence that the defendant was involved in a conspiracy [citation].].) Here, it is sufficient that the complaint alleges Ms. Shine was exposed to products manufactured by Port Jervis from 1958 through the 2020s. As discussed, Port Jervis admits that it manufactured cosmetic products for Jafra in California up until 2002 or 2003. Allegations that Ms. Shine was exposed to asbestos from Jafra cosmetic products at the time Port Jervis manufactured these products in California are sufficient to show that Plaintiffs' causes of action against Port Jervis arise from its contacts with California.

3. Fair Play and Substantial Justice

“In making this determination [as to whether the assertion of jurisdiction would comport with fair play and substantial justice], the court must consider the burden on the defendant, the interests of the forum State, and the plaintiff's interest in obtaining relief. It must also weigh in its determination the interstate judicial system's interest in obtaining the most efficient resolution of controversies; and the shared interest of the several States in furthering fundamental substantive social policies.” (Snowey v. Harrah's Entertainment, Inc. (2005) 35 Cal.4th 1054, 1070.)

Here, Port Jervis argues that it would be unreasonable for the court to exercise specific jurisdiction over it. (Motion at p.10.) Port Jervis argues it has not operated in California for 20 years, that its witnesses and evidence are located elsewhere, and that California has no interest in this litigation. (Id.) However, Port Jervis fails to provide evidence that it will be burdened if it must litigate in California.

On the other hand,

other factors weigh in favor of litigation in California. Plaintiffs allege Ms. Shine was exposed to asbestos in California. (Compl. at p. 34.) California has an interest in resolving this dispute in California because Ms. Shine sustained her injuries in California. Additionally, other Defendants to this action either reside in California or are properly sued in California. (Id. at ¶13.) The interstate judicial system has an interest in allowing this matter to stay in California because it is most efficient to resolve Plaintiffs' dispute with Port Jervis in California together with the other Defendants. The factors thus weigh in favor of a finding that this court's assertion of jurisdiction comports with fair play and substantial justice.

IV.

Conclusion

Port Jervis admits that it operated manufacturing facilities in California during the time Ms. Shine alleges she was exposed to products it manufactured for Jafra. Port Jervis therefore purposefully availed itself of the California market. Plaintiffs' claims are related to Port Jervis's California contacts because Ms. Shine alleges she was exposed to asbestos at the time Port Jervis manufactured products in California. The motion to quash is denied.

Plaintiffs to give notice.